

Judgment Sheet

IN THE LAHORE HIGH COURT, LAHORE JUDICIAL DEPARTMENT

Criminal Appeal No.512 of 2013

(Qamar Naveed & 6 others v. The State)

and

Murder Reference No.126 of 2013

(The State v. Qaisar Ejaz & another.)

JUDGMENT

Date of hearing: 13.10.2014.

Appellant by: Mr. Muhammad Nadir Malik, Advocate.

State by: Mirza Abid Majeed, Deputy Prosecutor General.

Complainant by: Dr. Muhammad Akmal Saleemi, Advocate.

SYED SHAHBAZ ALI RIZVI, J.- Appellants Qamar Naveed, Qaisar Ejaz, Mazhar Iqbal, Mubashir Munir Ahmad, Mudassar Munir, Basharat Ali and Muhammad Altaf were tried in case F.I.R No.273/2009 dated 28.08.2009 under Sections 302, 324, 337-F(i), 337-F(iii), 337-F(iv), 337-F(v), 337-A(i), 337-A(ii), 337-A(iii), 337-L(ii), 148, 149 PPC, Police Station Satghara District Okara and through the impugned judgment dated 21.03.2013 passed by the learned Additional Sessions Judge, Okara, they have been convicted and sentenced as under:-

Qamar Naveed and Qaisar Ejaz:-

“**Death Sentence** each under Section 302(b) read with Sections 148, 149 PPC and to pay compensation of Rs.400,000/- each to the legal heirs of the deceased under Section 544-A Cr.P.C and in default thereof to further undergo six months S.I each.”

Mubashir Munir Ahmad, Mudassar Munir, Mazhar Iqbal, Basharat and Muhammad Altaf:-

“Imprisonment for Life each under Section 302(b) read with Sections 148, 149 PPC and to pay compensation of Rs.100,000/- each to the legal heirs of the deceased under Section 544-A Cr.P.C and in default thereof to further undergo six months S.I each”

Murder Reference No.126 of 2013 for confirmation or otherwise of death sentence awarded to appellants Qaisar Ejaz and Qamar Naveed shall also be replied through this single judgment.

2. In this appeal, an application bearing Criminal Miscellaneous No.3268-M/2014 under Section 345 Cr.P.C seeking permission to compound the offence has been filed and a copy of the said application was sent to the learned Sessions Judge, Okara for submission of his report with regard to the genuineness or otherwise of the compromise.

3. Report has been received from the learned Sessions Judge, that reflects as under:-

“I summoned the legal heirs of Sohaib Ajmal deceased. I recorded the statements of Muhammad Waqar, Ejaz Mustafa, Ghulam Mustafa, Muhammad Aqeel, Muhammad Adeel, injured PWs, Mst. Shazia Sohaib widow of deceased and Dr. Muhammad Akmal Saleemi, Advocate Supreme Court. Muhammad Waqar, Ammar Ajmal, Ejaz Mustafa, Ghulam Mustafa, Muhammad Aqeel, Muhammad Adeel Khalid injured PWs have stated that they are the injured witnesses in case FIR No. 273/2009 dated 28.08.2009 registered at P/S Satghara Under Section 302, 324, 148, 149 PPC. They have further stated that as a result of evidence Qamar Naveed and Qaisar Ejaz sons of Mushtaq Ahmad were awarded death sentence and other accused persons namely Mubashar Munir, Mudassar Munir sons of Munir Ahmad, Basharat Ali son of Shah Alam, Mazhar Iqbal son of Mushtaq Ahmad and Muhammad Altaf son of Muhammad Latif were awarded life imprisonment. They have further added that as a result of compromise, they have forgiven all the convict persons. They have further added on oath that they have entered into a compromise. They have further stated on oath that if all the convict persons are acquitted they will be satisfied as this all is based upon the compromise. They have further stated that they want to live with peace; as we all are inter related, belong to the same brother hood. They have further stated that there is no compulsion or coercion upon them and they are stating with their free consent and free will. Mst. Shazia Sohaib widow of deceased

in her statement has stated that her husband Sohaib Ajmal was murdered and a criminal case vide FIR No. 273/2009 dated 28.08.2009 registered at P/S Satgarha Under Section 302, 324, 148, 149, PPC. She has further stated that she has only two sons namely Ahmad Sohab and Hamid Sohaib. They are minors. Ahmad Sohaib is aged about 15 years and Hamid Sohaib is aged about 12 years. She has further added that the mother of deceased namely Mst. Saleeman Bibi had already died and father of deceased namely Ajmal Chaudhary is alive and presently he is residing in United States of America. There is no other legal heirs of deceased Sohaib Ajmal. She has further stated that as a result of evidence Qamar Naveed and Qaisar Ejaz sons of Mushtaq Ahmad were awarded death sentence and other accused persons namely Mubashar Munir, Mudassar Munir sons of Munir Ahmad, Basharat Ali son of Shah Alam, Mazhar Iqbal son of Musthaq Ahmad and Muhammad Altaf son of Muhammad Latif were awarded life imprisonment. She has further added that as a result of compromise, she has forgiven all the convict persons. She has further stated that she has waived her right of Qisas and Diyat. She has further added that the father Mushtaq Ahmad of Qamar Naveed and Qaiser Ejaz accused persons who have been awarded death sentence had mutated piece of land measuring 8 kanals at the names of her minor sons namely Ahmad Sohaib and Hamid Sohaib equally as a Qisas. She has further stated that as a intervention of the brother hood compromise has been effected, they all want to live with love and peace, hence, they have forgiven all the accused persons in the above-mentioned criminal case. She has further stated that she has no objection if the accused persons are acquitted of the charges. She has further stated that she had made her statement without any pressure, coercion and compulsion. Dr. Muhammad Akmal Saleemi, Advocate Supreme Court of Pakistan has stated that he is real brother of Muhammad Ajmal who is father of Sohaib Ajmal deceased in a case vide FIR No. 273/2009 dated 28.08.2009 registered at P/S Satghara Okara that he is the general power of attorney of his real brother, Muhammad Ajmal Chaudhary who is residing presently in New York USA.

In his presence due to the intervention of brother hood compromise was effected and they have forgiven all the accused persons.

Ahmad Sohaib and Hamid Sohaib are minor sons of deceased. As per Notification for the year 2009-2010 Diyat amount was Rs.10,94,816/-. The share of each minor son is Rs.3,59,236/-. Mushtaq Ahmad father of Qamar Naveed and Qaisar Ejaz who have been awarded death sentence one acre of agricultural land was mutated in the names of the minor sons namely Ahmad Sohaib and Hamid Sohaib as Diyat. There is no other legal heir of Sohaib Ajmal deceased except, his father Muhammad Ajmal Chaudhary, Mst. Shazia Sohaib (widow) and two minor sons namely Ahmad Sohaib and Hamid Sohaib. He tender his affidavit Mark "A" and photo copy of general power of Attorney Mark "B" signed by his real brother in his favour as correctness and proof of compromise."

4. Learned Deputy Prosecutor General and the learned counsel for the complainant after going through the report submitted by the learned Sessions Judge, Okara have no objection if permission to compound the offence is granted and the appellants are acquitted.

5. All the legal heirs of the deceased except Ajmal Chaudhry, father of the deceased, who is presently residing in USA, appeared before the learned Sessions Judge, Okara and got recorded their statements qua compounding the offence and effecting a compromise with the appellants/accused. Dr. Muhammad Akmal Saleemi, Advocate/real brother of said Ajmal Chaudhry, having a general power of attorney, appeared on his behalf before the learned Sessions Judge and stated that a valid compromise had been effected between the parties. Vide order dated 17.09.2014, this Court observed that the General Power of Attorney (Mark-B) produced by Dr. Muhammad Akmal Saleemi, Advocate on behalf of Ajmal Chaudhry does not contain any such endorsement regarding the compromise between the parties and the same is only for the purpose of selling or purchasing the agricultural or commercial properties. The matter was fixed for rehearing on 29.09.2014 when Dr. Muhammad Akmal Saleemi, Advocate expressed his willingness to produce fresh Special Power of Attorney of his brother Ajmal Chaudhry, father of the deceased, which has been submitted by him duly attested by Muhammad Asif Mahmood Consular Attaché, Consulate General of Pakistan, New York, coupled with his own affidavit Mark "C" on behalf of his real brother Ajmal Chaudhry wherein the latter in Clause-VIII has made a statement authorizing the former to act on his behalf. Class-VIII is reproduced as under:-

“VIII.To make statement on my behalf before any competent forum, Session Court, High Court, Supreme Court of Pakistan or before any other competent Court, to confirm the compromise made by me/executant, as I below executant has forgiven all the accused persons for the sake of Almighty Allah and in the best interest of peace and harmony among parties, in case FIR No.273 of 2009, U/S 302, registered at PS Satghara, Okara, and vide Judgment dated 21.03.2013, passed by Learned Additional Sessions

Judge, Okara, Sessions Case No.58/2009, Sessions Trial No.06/2009.”

Whether or not the statement of any of the legal heirs of the deceased submitted through other person or an Advocate is viable in the criminal law in compounding the offence without his appearing before the competent court seized with the proceedings of compromise and recording his statement. This question of law has been resolved by the Hon’ble Supreme Court of Pakistan in a case reported as Maulana Nawab-ul-Hassan & 7 others v. The State (2003 SCMR 658) whereby two legal heirs of the deceased who were living abroad, without appearing before the Court, submitted their affidavits regarding compounding the offence, before the learned Sessions Judge duly certified by Consular, Embassy of Pakistan, Tehran. In the instant case though the affidavit duly sworn in by Ajmal Chaudhry, one of the legal heirs of the deceased, has not been submitted and he himself has not appeared before this Court to verify the fact of compromise, yet his statement in Clause-VIII supra made in the Special Power of Attorney issued in favour of Dr. Muhammad Akmal Saleemi, Advocate, duly verified by Consular Attaché, Consulate General of Pakistan, New York, and the affidavit Mark “C” duly sworn by his real brother Dr. Muhammad Akmal Saleemi, Advocate Supreme Court are available which, in our view, can be considered and entertained to meet the ends of justice and to promote harmony between the rival parties. So, we find that the compromise has been arrived at between the parties without any duress and coercion, which, even otherwise, is in the interest of the parties so that they may forget the existing estrangement and may live in harmony and peace. The learned Sessions Judge has shown his satisfaction with regard to genuineness of the compromise. The interest of the minors Ahmad Sohaib and Hamid Sohaib has been taken care as the mutation No.1869 dated 12.07.2014 has been passed in their favour. Learned Deputy Prosecutor General and learned counsel for the complainant have also expressed no objection on acquittal of the appellants. We, therefore, feel no

hesitation in granting permission to compound the offence. Accordingly, **Criminal Miscellaneous No.3268-M/2014** is accepted and **Criminal Appeal No.512 of 2013** is allowed with the result that convictions and sentences recorded against appellants Qamar Naveed, Qaisar Ejaz, Mazhar Iqbal, Mubashir Munir Ahmad, Mudassar Munir, Basharat Ali and Muhammad Altaf by the learned trial court through the impugned judgment dated 21.03.2013 are set aside and they are acquitted of the charges under section 345(6) Cr.P.C. Appellants No.1 to 6 namely Qamar Naveed, Qaisar Ejaz, Mazhar Iqbal, Mubashir Munir Ahmad, Mudassar Munir and Basharat Ali are in jail, they shall be released forthwith if not required in any other case, whereas appellant No.7 Muhammad Altaf is on bail, his sureties are discharged from the liability of bail bonds.

6. Death Sentence of appellants/convicts Qaisar Ejaz and Qamar Naveed is **NOT CONFIRMED** and **Murder Reference No.126 of 2013** is answered in the **NEGATIVE**.

(Muhammad Anwaarul Haq)
Judge

(Syed Shahbaz Ali Rizvi)
Judge

APPROVED FOR REPORTING

Judge

Judge